

Oceans and Origins: how Tikanga Māori can be used to strengthen claims to coastal and marine areas in Aotearoa New Zealand

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Artwork Explanation

This artwork reflects the interweaving of Tikanga Māorī into the common law system in Aotearoa New Zealand. This artwork was inspired by my research into how the courts have interpreted legislation allocating customary rights to marine areas. The current legislative framework in Aotearoa continues to stifle indigenous customary rights to marine and coastal areas. However, the courts have taken a more creative approach in interpreting this legislation. In particular, an understanding of the genealogical connection to those marine bodies, as well as a recognition of indigenous models of ownership, has been utilized in establishing customary rights.

The painting depicts a Kōwhaiwhai koru pattern on the left which is eroding the steps of Parliament. Kōwhaiwhai has great spiritual significance in te ao Māori. It can symbolize an ancestral connection, the meeting of Papatuanuku and Ranginui, and waves. The Kōwhaiwhai pattern in this painting is referential to the ancestral origin story of Māori and the Earth - Papatuanuku (earth) and Ranginui (sky) who were separated by their sons to create space for life on Earth. The two colours intertwining symbolize the connection of the two ancestors. Kōwhaiwhai are often used to symbolise genealogy for a particular iwi. By using the pattern and transforming it into a wave, the artwork reflects the deeper genealogical connection between Māori and the natural world.

The pattern I have chosen for the Kōwhaiwhai is a simple koru, which is based on the unfurling of a silver fern. The circular shape of the koru is referential to constant movement and a return to a point of origin. By using this simple shape, I have attempted to symbolise the way that law in Aotearoa will return to the origin: the aim is to restore customary interests back to Māori by a re-imagining of common law.

I have chosen to depict the erosion of Parliament, rather than the interweaving of two laws, because it seems that in order to truly accommodate Tikanga into the common law the current Western system must give way. Furthermore, the courts decisions that I have analysed appear to show that the judiciary is actively shifting away from the intended meaning of legislation, in order to reach a meaning that is more consistent with Tikanga. This holds great significance for future claims to Aboriginal title in Aotearoa and other countries where Indigenous law is recognised as co-existing alongside the settler legal system.

Indigenous Law and Common Law

In Canada, Indigenous law is able to be expressed through self-government, due to Aboriginal title and rights being enshrined in the Constitution Act.¹ As affirmed in *Tsilhqot'in*, the finding of Aboriginal Title is also done through consideration of the perspectives and ancestral practices of the Indigenous group.² In Aotearoa, there is no equivalent to the Aboriginal title protected by Section 35 of the Constitution Act. Although Māori are able to claim that they have rights to tino rangatiratanga through the Treaty of Waitangi, there is limited space to recognise spheres in which Māori are able to use Tikanga Māori (Māori law) to govern their own communities. This is a severe limitation of the recognition of Indigenous rights in Aotearoa.

However, recently there has been recognition that Tikanga Māori may form part of the common law of Aotearoa. A key area where this is occurring is entitlement to coastal and marine areas of land. As this paper will show, Tikanga has been used by the courts to reshape an understanding of rights to marine bodies that is more encompassing of Māori interests, going against the limiting statutory framework.

This short paper will discuss how the next step in incorporating indigenous law into the common law system should be a recognition of the genealogical connection between indigenous peoples and the natural environment. Cases such as *Ellis v R* and *Re Edwards Whakatohea* are a starting point for this development. Going further, the case of *Smith v Fonterra* is an opportunity for such a connection between indigenous peoples and land to be recognised in private law.

***Ellis v R* and Tikanga Māori**

It has now been recognised, unanimously by the New Zealand Supreme Court, that Tikanga Māori forms part of the common law of Aotearoa New Zealand.³ The Court, in *Ellis v R*, recognised that “tikanga has been and will continue to be recognised in the development of the common law of Aotearoa/New Zealand in cases where it is relevant”.⁴ *Ellis* concerned an appeal of a criminal conviction. Tikanga Māori was engaged in this case because the defendant passed away before the case could be heard by the Supreme Court.⁵ In the application for continuance, it was pleaded that the interests of justice included considerations

¹ *The Constitution Act* 1982 s 35(1).

² *Tsilhqot'in Nation v British Columbia* [2014] 2 SCR 257 at [32].

³ *Ellis v R* [2022] NZSC 114 at [19].

⁴ *Ibid* at [19].

⁵ *Ibid* at [26].

of Tikanga Māori. Each judge on the Supreme Court considered that Tikanga Māori may be a relevant factor to some extent.⁶

The court took care to stress that the incorporation of Tikanga is still being worked out, and will continue to occur in a very context-specific way. Principles of Tikanga should be considered as relevant when assessing the specific factors of a case, but cannot be isolated or separated out. Winkelman CJ noted that the incorporation and role of tikanga in the common law is best approached on a case-by-case basis, because “Tikanga remains rooted in its own world”.⁷ Similarly, Williams J asserted that “tikanga will be relevant when the facts suggest it is and the common law has not otherwise excluded it”.⁸ Tikanga may also have relevance “where the common law in a particular area is developing, and such development would benefit from a consideration of relevant tikanga principles”.⁹

Indigenous Law and Marine Interests

In Aotearoa, Tikanga Māori is slowly being incorporated into the common law in a way which reshapes the laws requirements for ownership and title. This is most apparent in the area of customary marine rights under the Marine and Coastal Area (Takutai Moana) Act 2011 (Takutai Moana Act). This Act enables iwi, hapu, and whanau to have their customary rights recognised through Customary Marine Titles (CMT) and protected customary rights (PCRs).

Customary Marine Title is a statutory version of aboriginal title in Aotearoa, that applies specifically to marine areas. Māori can apply to have their customary rights to the common marine and coastal area recognised through the Takutai Moana Act, if it can be shown that they hold the specified area “in accordance with tikanga”.¹⁰ A declaration of Customary Marine Title means Māori are entitled to give or decline consent for activities occurring on the area, or consent for the establishment of a reserve. They may also, in some instances, be entitled to a “wahi tapu” protection right - the right to prohibit others from entering the area - which the Court will enforce. The title cannot be sold or converted, and is symbolic of

⁶ *Ibid* at [210] - [211] per Winkelmann CJ, [236] per Williams J, at [142] - [145] per Glazebrook J and [315] per O’Regan and Arnold JJ.

⁷ *Ibid* at [181].

⁸ *Ibid* at [265].

⁹ *Ibid* at [265].

¹⁰ Marine and Coastal Area (Takutai Moana) Act 2011, s 58(1)(a).

the historical relationship that existed between Māori and the marine areas. A CMT also does not allow the title holder to alienate or dispose of any part of the land.¹¹

The courts, in determining whether a CMT should be granted, have taken the perspective that Tikanga concepts are to be applied rather than common law concepts. This was exemplified in the case *Re Edwards Whakatohea*.¹² Because the Takutai Moana Act only confers limited rights, not ownership akin to fee simple, Churchman J in *Re Edwards* took the position that “attempting to interpret or define concepts used in the [Takutai Moana Act] by reference to common law proprietary rights is inappropriate”.¹³ Instead, the inquiry was wholly focused on Tikanga principles of ownership, rather than traditional common law proprietary principles.¹⁴

The Takutai Moana Act requires that the Māori group show there has been exclusive occupation of the common marine area.¹⁵ This is a clear reference to a common law concept, which the Court found is not present in Tikanga. Churchman J noted that:¹⁶

“the principle of whanaungatanga emphasizes an inclusiveness and collectiveness which is contrary to the exclusionary exercise of rights which often forms the basis of the common law legal system, suggesting here that if those rights were grounded in tikanga, recognising them on a purely exclusionary basis by refusing to grant a PCR to more than one group when it is established on the evidence that multiple groups exercised these rights, would be unreasonable”.

Whanaungatanga is a principle which is inherently connected to kinship. As Joe Williams identifies, whanaungatanga is the integral principle of tikanga Māori. It is the “rights and obligations of kinship”, and extends not only to family and community but also to the physical world.¹⁷ The reference to whanaungatanga in *Re Edwards* signals an understanding of this genealogical relationship to land.

In line with this central tenet of whanaungatanga, all rights and obligations to natural resources are shaped to reflect a reciprocal relationship. Legal connections to land under Tikanga Māori are inherently reciprocal,

¹¹ *Ibid* s 60(1)(a).

¹² *Re Edwards Whakatohea* [2022] 2 NZLR 772 at 775.

¹³ *Ibid* at [55].

¹⁴ *Ibid* at 776.

¹⁵ Takutai Moana Act, *supra* note 9, at s 58(1)(b)(i).

¹⁶ *Re Edwards*, *supra* note 11, at [397].

¹⁷ Joe Williams “Lex Aoteaora: An Heroic Attempt to Map the Māori Dimension in Modern New Zealand Law” (2013) 21 Waikato Law Review 1at 4.

reflecting an obligation to maintain a relationship to the resource in order to be entitled to use it.¹⁸ The legal obligation that arises out of this reciprocal ongoing relationship is kaitiakitanga; “the idea that any right over a human or resource carries with it a reciprocal obligation to care for his, her or its physical and spiritual welfare.”¹⁹ The relationship and obligations to the land reflect the spiritual and familial relationships between Māori and the natural world. The personified versions of the Earth (Papatuanuku) and Sky (Ranginui) were born from a single ancestral spiritual source, and their descendants form a web of interconnection “where ongoing relationships, care and responsibility mark the actions of the different entities charged with ruling the environment”.²⁰ The principle of whanaungatanga reflects these relationships by giving a legal right and obligation to the kinship between Māori and the natural world.

The recognition of whanaungatanga as creating legal obligations therefore erodes historical principles of land ownership. Accordingly, it was determined that the Takutai Moana Act should be interpreted to allow for jointly held CMT, in recognition of the concept of groups holding shared exclusivity over areas.²¹ Furthermore, although it was predicted that this may require some coordination and agreement, the Court was confident in the ability of Tikanga to provide for these jointly held rights, as it had done in the past for so many years.²² This shows an interweaving of Tikanga principles into the common law in a way that was likely not contemplated by Parliament at the time the legislation was passed. The courts in Aotearoa are willing to engage in a judicial exercise which places Tikanga at the center of statutory interpretation where there are marine interests involved.

Admittedly, this incorporation of Tikanga can only go so far, because the CMT scheme that the Courts are dealing with is very limited. It does not compare to a full fee-simple ownership over marine areas, nor does it compare to the full Aboriginal title that is constitutionally entrenched in Canada. However, now in the wake of *Ellis*, there is the chance that the common law will continue to be developed in line with Tikanga to bridge this gap and strengthen Māori rights to land.

Tikanga and Land Rights

Tikanga Māori is recognised in *R v Ellis* as “the law that grew from and is very much embedded in our whenua (land)”.²³ The incorporation of Tikanga Māori into the common law system means that

¹⁸ *Ibid* at 4.

¹⁹ *Ibid* at 4.

²⁰ Andrea Tunks “Tangata Whenua Ethics and Climate Change” (1997) 1 N Z J Env't L 67 at 71.

²¹ *Re Edwards*, *supra* note 11, at [168].

²² *Ibid* at [170].

²³ *Ellis v R*, *supra* note 2, at [168].

whanaungatanga and kaitiakitanga, and the legal obligations that manifest from these values, could also be recognised in the common-law. Together, these values create a set of obligations for one's own family as well as one's ancestral place and environment. Future litigation about indigenous rights to land now has the chance to point to those genealogical links between Indigenous peoples and the land.

Future claims which relate to natural resource use could also be strengthened by an incorporation of Tikanga. For example, the upcoming case of *Smith v Fonterra* appeals to the use of Tikanga as a source of a duty in tort to cease causing harm to the environment. Using Tikanga as a consideration in the common law could also mean reframing the inquiry from a "narrow correctional approach that is focused on the idea of individual harm" to the very core question of "the action and whether it is tika". Essentially, this means the inquiry should focus on the harm itself, rather than principles of proximity which reinforce individualistic worldviews. To do this would be to recognise how Indigenous understandings of harm and obligation require a more expansive view of private law duties.

Conclusion

The painting that I have done reflects this hope that the courts will continue to recognise alternative forms of rights, weaving indigenous understandings of connection into the common law to reflect Indigenous interests. Cases in Canada which seek to recognise rights to marine areas may be influenced by this development in Aotearoa. In particular this may mean encouraging the courts to engage with alternative models of ownership and connection to marine areas.